

WIOA COMPLAINT AND RESOLUTION POLICIES AND PROCEDURES PARTICIPANT ACCEPTANCE FORM

EQUAL OPPORTUNITY IS THE LAW

It is against the law for this recipient of federal financial assistance to discriminate on the following basis:

Against any individual in the United States, because of race; color; religion; sex (including pregnancy, childbirth, and related medical conditions, sex stereotyping, transgender status, and gender identity); national origin (including limited English proficiency); age; disability, political affiliation, or belief; and

Against any beneficiary of, applicant to, or participant in, programs financially assisted under Title I of the Workforce Innovation and Opportunity Act (WIOA), because of the individual's citizenship status or participation in any WIOA Title I financially assisted program or activity.

The recipient must not discriminate in any of the following areas:

Deciding who will be admitted, or have access, to any WIOA Title I financially assisted program or activity;

Providing opportunities in, or treating any person regarding, such a program or activity; or

Making employment decisions in the administration of, or in connection with, such a program or activity.

Recipients of federal financial assistance must take reasonable steps to ensure that communications with individuals with disabilities are as effective as communications with others.

This means that, upon request and at no cost to the individual, recipients are required to provide appropriate auxiliary aids and services to qualified individuals with disabilities.

The Los Angeles County Local Workforce Development Board (LWDB) has assured the U.S. Department of Labor (DOL) and the State of California Employment Development Department (EDD) that the County's Workforce Innovation and Opportunity Act (WIOA) Program will adhere to EQUAL OPPORTUNITY as mandated by the LAW.

WHAT TO DO IF YOU BELIEVE YOU HAVE EXPERIENCED DISCRIMINATION

If you think that you have been subjected to discrimination under a WIOA Title I financially assisted program or activity, you may file a complaint within one hundred eighty (180) days from the date of the alleged violation with either:

**County of Los Angeles Department
of Economic Opportunity**
510 S. Vermont Avenue
Los Angeles, CA 90020-1708
Attn: Latrice Mcknight
lmcknight@opportunity.lacounty.gov
(213) 738-3382

OR

**Civil Rights Center (CRC)
U.S. Department of Labor**
200 Constitution Avenue, N.W.
Room N-4123
Washington, D.C. 20210
Or
Electronically as directed on the
CRC website at www.dol.gov/crc

If you file your complaint with the County of Los Angeles, you must wait either until the County issues a written *Notice of Final Action*, or until ninety (90) days have passed (whichever is sooner), before filing with the Civil Rights Center (see address above).

If the County does not give you a written *Notice of Final Action* within ninety (90) days of the day on which you filed your complaint, you do not have to wait for the County to issue that notice before filing a complaint with the CRC. However, you must file your CRC complaint within thirty (30) days of the ninety-day (90-day) deadline (in other words, within one hundred twenty (120) days after the day on which you filed your complaint with the County).

If County does give you a written *Notice of Final Action* on your complaint, but you are dissatisfied with the decision or resolution, you may file a complaint with the CRC. You must file your CRC complaint within thirty (30) days of the date on which you received the *Notice of Final Action*.

County of Los Angeles Workforce Innovation and Opportunity Act (WIOA) Grievances and Complaints

Any participant or other interested party adversely affected by a decision or action by the County of Los Angeles Workforce Development Area (LWDA), including decisions by America's Job Center of California (AJCC) and service providers, has the right to file a grievance or complaint with the AJCC or with the County of Los Angeles Department of Economic Opportunity (County).

AJCC Grievance and Complaint Filing Procedure

For grievance or complaint filing instructions at AJCC level, please see the receptionist of the AJCC in question or contact the AJCC Grievance and Complaint Filing Officer as follows:

AJCC Grievance and Complaint Filing Officer

Attn: _____

County of Los Angeles LWDA Grievance and Complaint Filing Procedure

WIOA grievances and complaints at the level of County of Los Angeles LWDA must be filed within one (1) year of the alleged violation. Participants have the right to receive technical assistance to ensure that complaints are properly filed. Such technical assistance includes providing instructions on how to file a grievance or complaint, providing relevant copies of documents such as the *County of Los Angeles WIOA Complaint and Resolution Policies and Procedures*, WIOA federal regulations, state laws and regulations, local procedures, and/or contracts, and providing clarifications and interpretations of relevant provisions.

All WIOA grievances or complaints must be in writing, signed and dated by the complainant and shall contain the following:

- Complainant's full name, telephone number, and mailing address;
- AJCC name, address, and telephone number;
- The facts and dates describing the alleged violation; and
- Provision(s) of WIOA, federal regulations, grant, or other agreements under WIOA believed to have been violated;
- Grievances or complaints against individuals, including staff or participants, shall indicate how those individuals did not comply with WIOA law, regulation, or contract; and
- How the complainant would like the complaint to be resolved.

The complaint must be filed with: **County of Los Angeles Department of Economic Opportunity**
510 S. Vermont Avenue, Los Angeles, CA 90020
Attn: Latrice Mcknight, (213) 738-3382
lmcknight@opportunity.lacounty.gov

Upon receipt of any such complaint or grievance, the County of Los Angeles will process the matter consistent with the *County of Los Angeles WIOA Complaint and Resolution Policies and Procedures* and will provide for an informal resolution or an administrative hearing. Any grievance or complaint that alleges a labor standards violation may be submitted to binding arbitration between the parties if a collective bargaining agreement covering the parties to the grievance or complaint so provides. An informal resolution will commence within ten (10) working days of the date of the complaint. An administrative hearing on any grievance or complaint shall be scheduled within thirty (30) days of filing the complaint or grievance. The complainant and the respondent will be notified in writing of the hearing ten (10) days prior to the date of the hearing.

Not later than sixty (60) days after the filing of the grievance or complaint, the Hearing Officer shall mail a written decision to both parties.

Any grievance or complaint may be appealed to the State of California Employment Development Department (or other designated State Department). If no decision is reached within sixty (60) days or if either party is dissatisfied with the County of Los Angeles Hearing Officer's determination, or if there have been any incident(s) of restraint, coercion, or reprisal because of filing a grievance or complaint, the complainant may request a State hearing by submitting a written notice of appeal to:

Chief, Compliance Review Division, MIC 22-M
Employment Development Department
P.O. Box 826880, Sacramento, CA 94280-0001

All appeal requests must be in writing, signed and dated by the complainant and include the following information:

- Complainant's full name, telephone number, and mailing address;
- County LWDA administrative entity full name, mailing address and telephone number (County of Los Angeles Department of Economic Opportunity)
- A copy of the written decision rendered by the County of Los Angeles.
- A brief statement of why the request for EDD review is being made and/or the section of the County's decision to be reviewed. If known, the statement should also include the provision(s) under WIOA, the regulations or sub-grant agreement believed to have been violated.
- A statement of the relief or remedy being sought.

Appeals must be filed or postmarked within 10 days from the date on which the complainant received an adverse decision from the County. Requests for EDD review must be filed or postmarked within 15 days from either of the following:

- The date on which a complainant should have received a decision regarding the complaint filed, which is defined as five days from the date the decision was due.
- The date on which an instance of restraint, coercion, or reprisal was alleged to have occurred because of filing the complaint.

If the State Review Panel has issued an adverse decision regarding a grievance or complaint, or has not issued a decision within 60 days of receipt of a local level appeal, request for EDD review, or grievance or complaint, the complainant may file an appeal with the Secretary of Labor. This appeal process applies to grievances and complaints that originated at the County or state level.

Appeals of an adverse decision must be filed within 60 days of receipt of the adverse decision from the State Review Panel. In cases where the State Review Panel did not issue a decision, the complainant must file an appeal within 120 days of either of the following:

- The date on which the complainant filed the appeal of a local level decision or request for EDD review with the state.
- The date on which the complainant filed the grievance or complaint with the state.

All appeals to the Secretary must be sent to the DOL National Office via certified mail with return receipts requested. Copies of the appeal must simultaneously be provided to the DOL Employment and Training Administration (ETA) Regional Administrator and the respondent. Mailing addresses for the DOL National Office and ETA Regional Administrator are included below:

DOL National Office

**Secretary of Labor
Attn: Assistant Secretary of ETA
U.S. Department of Labor
200 Constitution Avenue, NW
Washington, DC 20210**

ETA Regional Administrator

**Office of Regional Administrator
U.S. Department of Labor
P.O. Box 193767
San Francisco, CA 94119-3767**

Grievances or complaints filed directly with the Secretary that were not previously filed with the Local Area and/or state will be remanded to the Local Area or state, as appropriate.

The Secretary shall issue a final determination no later than 120 days after receiving the appeal.

I hereby acknowledge receipt of a signed copy of the *Local Workforce Innovation and Opportunity Act Complaint and Resolutions Policies and Procedures Participant Acceptance Form* and a copy of the *County of Los Angeles Workforce Innovation and Opportunity Act Complaint and Resolution Policies and Procedures*. My signature below certifies that I have read and understand the procedures and will comply with the policies in the Workforce Innovation and Opportunity Act (WIOA) funded Program.

Participant Name (Print)

Participant Signature

Date

Parent/Guardian Name (If under 18)

Parent/Guardian Signature

Date

Staff Name (Print)

Staff Signature

Date